

TERMS AND CONDITIONS

Notice Of Cancellation:

To Cancel this transaction, mail, email or deliver a signed and dated copy of this cancellation notice or any other written notice within 3 Days of the Date of Transaction to: Renew Home Exteriors 1361 Wooster Rd Unit A, Barberton, Oh. 44203 or email to RHEohio@gmail.com

All of the following agreements and covenants have the same force and effect as if fully set forth on this contract and have been read, understood and agreed to by the parties hereto before signing this contract.

1. Warranty-This Contract is covered by a Limited 2-year warranty on workmanship unless otherwise noted on the front of this contract. This Limited warranty does not apply to work intended to serve as a temporary patch or repair. Leaks Caused by workmanship, as determined by contractor, will be repaired at no charge to the customer under the warranty period. To obtain performance under this limited warranty the property owner must notify the contractor of any claimed workmanship defects promptly following its discovery. The warranty does not cover acts of God wind driven rain or snow infiltration of roof,vents,or louvers or by movement settling, cracking, of walls or foundation. This limited Warranty does not extend to color, or manufacture defects Contractor will extend to the customer all manufacturers' warranties for materials and or products used but the Contractor itself makes no guarantee for materials and or products used. All warranties on materials are those made by the manufacturer. All Warranties, if any, by the manufacturer are theirs and the contractor shall not be liable for performance under any such manufacturer warranties on materials or products used.
2. Conditions beyond our control. Please read thoroughly! Please be aware that despite our best efforts, the following may occur during construction projects, and are not the responsibility of the contractor. if you discover problems during or after your construction project, you must review your contract prior to contacting us to determine what your responsibility is. Dust and Damage. It is your responsibility to take preventative action inside and outside your home. Customer(s) agree to check, and or remove paintings, antiques, photos, mirrors, ect from the walls, as these may incur damage if they fall due to the walls vibrating during roofing, siding, or other work; and to cover any and all items in the attic and other interior spaces that may get dirt or damage from dust and debris. Roofing and siding work will produce significant amounts of dust, debris and noise, Customer(s) agrees to remove or protect all personal or real property which might get dirty or damaged from Contractor in the performance of this agreement. to include but not limited to: Carpets, Furniture, lighting fixtures, hanging items, and vehicles and tires. Customer specifically acknowledges that dust, dirt, and debris may filter through open spaces such as tongue and groove ceilings, attic spaces, garages. Contractor is not responsible for gutter screens or gutter systems.
3. Delivery and installation dates are estimates only and the Seller is not responsible for delays in delays or materials and / or installation due to strike, weather, acts of God acts of public authority and any other condition beyond the Seller's reasonable control.
4. A delivery date will be provided to the Buyer by the Seller when the improvements contracted for herein are ordered from the manufacturer. An installation date will be mutually agreed Apon between Seller and Buyer within 15 days after your siding materials arrive at our facility. If no date is made, payment in full for your order will be due upon demand.
5. Buyer shall pay seller (not as penalty but as liquidated damages based on the impracticality of fixing actual damages) a late charge on all amounts not paid when due, computed at the rate of one and one half percent (1.5%) per month (with an annual percentage rate of 18%), or the maximum rate permitted by law in the event such rate is lower, beginning on the thirty- first (31st) day from the date of the invoice until paid in full. Payments shall be applied first to accrued late charges, then to past due amounts.
6. Buyer agrees to pay all responsible attorneys' fees incurred by Seller in relation to the interpretation, construction or enforcement of these Terms and Conditions, including collection costs in collecting amounts not paid when due. Whether or not a lawsuit is pursued to judgment before Buyer pays of the indebttness.
7. The terms and conditions, together with the Contract, as well as any other documents required by the Seller including future invoices from the Seller, shall constitute the entire understanding of the parties concerning such sales transactions. The terms ans conditions and Seller's invoices may be amended only if and to extent actually agreed to in writing and signed by an authorized person on behalf of the Seller.
8. No changes can be made to the contract 24 hours

after the final measure has been taken. All changes must be in writing to be valid.

9. In the event a check is given as payment in connection with any purchase, and such check, upon deposited or negotiation, is not promptly honored by the bank upon which drawn, the provisions hereof shall be applicable in regard to the indebtedness represented by the check. Nothing herein shall be deemed to be an approval for the Buyer to give a check that does not clear the bank upon which it is drawn. Buyer also agrees to pay a service charge of \$35.00 for any check that fails promptly to clear the Buyers bank upon presentation.

10. Buyer or authorized agent of the buyer may be required during the complete installation of the improvements contracted for herein. Since Seller cannot specify an exact time the installation will begin, seller is not responsible for Buyers lost wages or the other consequential damages related thereto. Seller is not responsible for losses that occur as a result of delay that is beyond Seller's control.

11. Buyer must move all breakable items prior to installation date. Seller is not responsible for removal of, or damages to wall hangings, pictures and breakable items due to failure of Buyer to remove.

12. Seller is not responsible for painting and plastering existing walls and or, woodwork after installation of the improvements contracted for herein.

13. In the event this contract is not accepted by the Seller, any payment made hereunder will be refunded to the buyer and the contract shall be null and void and of no effect. Seller is not responsible for existing structural defects, dry rot or code violations, Repairing, plastering, carpentry and/or decorating are not included unless specifically charged for and specified in writing herein.

14. If the contract is for the purchase and installation of several services from Seller, such roofing, replacement windows, siding and sunroom, Buyer shall pay balance due for each individual component of the work performed by Seller at the at the completion of the work being performed by The Seller at the end of each individual component.

15. Buyer understands that all construction materials are property of the Seller and that all excess materials are removed from the jobsite. Buyer further agrees to make reasonable provisions to safeguard construction materials and job equipment left on premises during the course of performing this contract. Buyer agrees to make garage or similar area available and provide necessary utilities to complete the work.

16. Seller will maintain property damage insurance and comprehensive public liability insurance policies.

17. Contract is subject to measure and verifications of the installation. This contract shall become binding only upon acceptance by an officer of the Seller.

18. These terms and conditions shall inure benefit of and are binding upon the parties hereto and their successors and permitted assigns any rights, remedies, obligations or liabilities under or by reason of these Terms and Conditions.

19. Seller may sell, assign or transfer al or any portion of the Buyers account or any balances due under Buyer's account without prior notice to Buyer. Buyer may not sell, assign or transfer any of its obligations hereunder.

20. If any portion of these terms and conditions between the parties. All previous discussions, oral representations, proposals and agreements have been merged into this agreement. This contract shall not be modified unless in writing, signed by Seller and Buyer.

21. The terms and conditions set forth in this binding contractual agreement adhere to and are governed by the laws and regulations of the State of Ohio.

22. The Seller and Buyer agree that any controversy or claims, other than claims brought by the Seller against Buyer for collection of unpaid balance due under this contract, arising out of or relating to this agreement, will be settled at the sole discretion of the seller by binding arbitration. Such binding arbitrations shall be conducted by and in accordance with the rules then in force of an arbitration program. The decision of the arbitrator shall be final and binding on the parties.

23. The seller agrees that it will perform this contract in conformity industry practices and in accordance to be building codes and regulations maintained by the jurisdiction in which the work is being performed. Furthermore, Seller warrants and represents that all the equipment, materials and installation described in this agreement is completely adequate and sufficient tp perform the intended task.

24. Buyer warrants that all elements of the home or building meet the mandatory building codes presiding over the premises. In the event building inspectors require additional work to be done that is not included on the contract, buyer may be responsible for for additional cost.

25. I authorize Seller and its assignee to make whatever inquiries it deems necessary in connection with this contract. I further authorize any person or consumer reporting agency to complete and furnish seller and its assignee any information that it may have obtain in response to such inquiries, and agree that such information, along with this contract, shall remain sellers property, whether or not this contract is accepted.

26. . After three (3) business days from the date of this contract is not subject to cancellation by the Buyer(s) without payment to seller of not less than thirty percent (30%) of the new amount of contract (canceled with penalty only before final measurement occurs.) As its liquidated damages for breach of contract, being stipulated that actual damages are too difficult to ascertain in the event of a breach. Once final measurements are taken contract is not subject to cancellation without penalty. (There is no right to cancel for contracts signed in show room.)

No verbal or discussions in any form for repairs or improvements will be honored unless in writing on a company contract, change order or letterhead any other promises verbal or other are not considered part of this contract.

27. **Install Date Approximately 10-16**, weeks no changes on orders after 3-day notice to cancel Customer is aware of all terms and conditions, disclaimers, and warranties. Acceptance of Contract-The prices, specifications, conditions, and separate warranty are satisfactory and hereby accepted. You are authorized to do the work as specified. Payment will be made as specified on this contract Any Changes to this contract must be in writing and any verbal acknowledgment will not be bind as part of contract unless added in writing.

28. CONSUMER AUTHORIZATION FOR DIRECT PAYMENT VIA ACH (ACH DEBITS) or Credit Card;

From here forward Renew Home Exteriors will be known as "Company" and Buyer (s) listed on the contract will be known as "we", "our" or "Consumers"

Direct Payment via ACH or Credit Card is the transfer of funds from a consumer account or credit account for the purpose of making a payment.

I (we) authorize Renew Home Exteriors ("COMPANY") to electronically debit my (our) account (and, if necessary, electronically credit my (our) account as follows: Checking Account, Savings Account, Credit Card at the depository financial institution named in the attached voided check or Credit Card account listed. I (we) agree to ACH or Credit Card Processing transactions I (we) authorize to comply with all applicable law. The amount to be debited will be the amount listed on the "quote page" of the agreed contract with Renew Home Exteriors (Company). I (we) understand that the amount debited will follow the payment schedule listed on the contract as the amount down and final payment listed on the schedule and that this authorization will remain in full force and effect until I (we) notify "COMPANY" in writing to RHEOhio@gmail.com that I (we) wish to revoke this authorization. I (we) understand that "COMPANY" requires at least 10 days' notice before the debit date. Any stopped payment or revoke of authorization does not void the amount due to the "Company" under the agreed contract.